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With Newsom's Signature, California Bans Four Food Additives

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On October 7, California Governor Gavin Newsom signed California Assembly bill AB 418 into law. The bill, which was authored by Assemblymember Jesse Gabriel (D-Woodland Hills) and co-sponsored by Consumer Reports and the Environmental Working Group (EWG) bans the use of brominated vegetable oil, potassium bromate, propyl paraben and Red Dye No. 3 as additives in food and drink products sold in the state. The chemicals are currently banned in the European Union due to alleged links to serious health problems, including higher risk of cancer, harm to the reproductive system and hyperactivity.

The bill will go into effect on January 1, 2027. Violators face a civil penalty not to exceed $5,000 for a first violation, and not to exceed $10,000 for each subsequent violation.

In a statement following the signing of the bill, Governor Newsom acknowledged concerns relates to the state's actions as well as his reasons for supporting the legislation, stating:

"Californians trust that the food products they consume are safe. I appreciate the author and stakeholders for working on amendments, which advance our shared public health objectives while maintaining consumer choice. The additives addressed in this bill are already banned in various other countries.

Signing this into law is a positive step forward on these four food additives until the United States Food and Drug Administration (FDA) reviews and establishes national updated safety levels for these additives.

There have been many misconceptions about this bill and its impacts. For example, attached to this message is a bag of the popular candy "Skittles," which became the face of this proposal. This particular bag of candy comes from the European Union – a place that already bans a number of chemical additives and colorants. This is demonstrable proof that the food industry is capable of maintaining product lines while complying with different public health laws, country-to-country.

Further, this bill's implementation is delayed until 2027 – significant time for brands to revise their recipes to avoid these harmful chemicals. Californians will still be able to access and enjoy their favorite food products, with greater confidence in the safety of such products."

The post With Newsom's Signature, California Bans Four Food Additives appeared first on FoodSafetyTech.

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